

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
ISAAH MEDLOCK, an infant by his Mother and
Natural Guardian, WATISHA MEDLOCK,

Plaintiff,

SUMMONS

Plaintiff designates
Queens County as
place of trial.

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
DEPARTMENT OF EDUCATION, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
CALLAHAN (Badge No.: 19438), and SARGEANT
STROM (Shield No.: 816),

Defendants.

The basis of venue is:
Place of Occurrence.

Place of Occurrence:
158-17 Linden Blvd.
Queens, NY 11434

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 16, 2014

SALZMAN & WINER, LLP.
Attorneys for Plaintiff
305 Broadway, Suite 1204
New York, New York 10007
Tel.: (212) 233-6550

By: 
Mitchell G. Shapiro, Esq.

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY DEPARTMENT OF EDUCATION
c/o THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
c/o THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER CALLAHAN (Badge No.: 19438)
c/o 103rd Precinct
168-02 91st Avenue
Jamaica, NY 11432

SERGEANT STROM (Shield No.: 816)
c/o 103rd Precinct
168-02 91st Avenue
Jamaica, NY 11432

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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ISAIAH MEDLOCK, an infant by his Mother and
Natural Guardian, WATISHA MEDLOCK,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
DEPARTMENT OF EDUCATION, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
CALLAHAN (Badge No.: 19438), and SARGEANT
STROM (Shield No.: 816),

Defendants.
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Index No.:

VERIFIED COMPLAINT

Plaintiffs, by their attorneys, SALZMAN & WINER, LLP., complaining of the defendants,
respectfully allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, plaintiff infant was and is a resident of the
County of Queens, City and State of New York.

2. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK
(hereinafter referred to as "CITY") was and is a municipal corporation, duly authorized and existing
under and by virtue of the laws of the State of New York.

3. That on or about 8th day of April, 2013, plaintiff caused a Notice of Claim and Intention
to Sue to be served upon defendant "CITY" and that said Notice was served at least (60) days prior to
the commencement of this action.

4. That defendant "CITY" has not conducted or requested an oral examination of plaintiff,
pursuant to Sec. 50-e and Sec. 50-h of the General Municipal Law.

5. That more than thirty (30) days have elapsed since the presentation of said Notice of
Claim; that said claim remains unadjusted, uncompromised, unpaid and unsettled; and that defendants,
have wholly failed, omitted, neglected and refused to make any adjustment, compromise, payment or
settlement thereof.

6. That plaintiff has duly complied, so far as is possible, with all conditions precedent to the bringing of this action.

7. That this action is being commenced within (1) year and ninety (90) days from the date of the occurrence which is the subject matter thereof.

8. At all times hereinafter mentioned, defendant "CITY" had an affirmative duty to properly supervise its employees.

9. On or about the 12th day of February, 2013, plaintiff infant was falsely accused of sending an email message containing alleged threatening and harassing comments regarding teacher Meloday Davis. The incident was investigated by school personnel including principal Lisa Grant Stewart, Assistant principal Wilbur Smith, Parent coordinator Debra Simms, and SSA supervisor Moore-Jones, and the teacher Meloday Davis. The email was not sent from the infant's assigned computer, but a computer assigned to another student Dexter Kingston. The school personnel did not notify the plaintiff infant's mother about the incident and interviewed him without the presence of his guardian. Nevertheless and without a good faith basis, and without probable cause, or a confession, or a thorough investigation the school personnel contacted the local police precinct. Officers from the 103rd precinct responded including Police Officer Callahan ID # 19438 and Sargeant Strom Shield # 816, who interrogated the plaintiff infant without his guardian being present and investigated the various allegations and interviewed the persons involved. They falsely arrested him without probable cause, Arrest #: Q 13608450-L, handcuffed him behind his back, and then in a "perp walk" embarrassed and humiliated the plaintiff infant by parading him in handcuffs in front of his peers and teachers, and transported plaintiff infant to the 103rd precinct where they confined him for about three hours, handcuffed to a bar. That the causes of action continued as the infant plaintiff was thereafter compelled to enter into an agreement to cooperate with Adjustment Services with the New York City Department of Probation through 4/10/13. Plaintiff infant was unjustifiably arrested by employees of "CITY" police officer Callahan, and Sargeant Strom.

10. That said arrest was without cause or justification including slander and defamation.

11. That as a result of the false arrest plaintiff was falsely imprisoned.

12. That the occurrence was through no fault, negligence, assumption of risk, lack of care or

culpable conduct on the part of the plaintiff infant.

13. That said occurrence was due solely and wholly to the negligence, carelessness and recklessness of defendant "CITY", by its agents, servants and/or employees in the negligent hiring its employees.

14. That said occurrence was due solely and wholly to the negligence, carelessness and recklessness of defendant "CITY", by its agents, servants and/or employees in the negligent training of its employees.

15. As a result of the negligence of defendant "CITY", and without any want of care on the part of the plaintiff infant herein, plaintiff infant was caused to experience extreme and emotional distress and causing him to suffer severe physical pain and mental anguish.

16. The foregoing was caused solely and wholly through and by reason of the negligence, carelessness and recklessness of the defendant "CITY".

17. As a result of the foregoing and solely as a result of the negligence and recklessness of the defendant "CITY", herein, plaintiff infant seeks damages for physical pain and suffering, out of pocket expenses and loss of earnings.

18. As a result of the foregoing and solely as a result of the negligence of the defendant "CITY", herein, plaintiff infant seeks punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION

19. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in Paragraphs "1" through "18" of this Complaint, inclusive, with the same force and effect as though fully set forth at length herein.

20. That at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD") was and is a municipal corporation, duly authorized and existing under and by virtue of the laws of the State of New York.

21. That on or about 8th day of April, 2013, plaintiff infant caused a Notice of Claim and Intention to Sue to be served upon defendant "NYPD" and that said Notice was served at least (60) days prior to the commencement of this action.

22. That defendant "NYPD" has not requested or conducted an oral examination of plaintiff

infant.

23. That more than thirty (30) days have elapsed since the presentation of said Notice of Claim; that said claim remains unadjusted, uncompromised, unpaid and unsettled; and that defendants, have wholly failed, omitted, neglected and refused to make any adjustment, compromise, payment or settlement thereof.

24. That plaintiff infant has duly complied, so far as is possible, with all conditions precedent to the bringing of this action.

25. That this action is being commenced within (1) year and ninety (90) days from the date of the occurrence which is the subject matter thereof.

26. At all times hereinafter mentioned, defendant "NYPD" had an affirmative duty to properly supervise its employees, and to properly train its employees.

27. On or about the 12th day of February, 2013, plaintiff infant was falsely accused of sending an email message containing alleged threatening and harassing comments regarding teacher Meloday Davis. The incident was investigated by school personnel including principal Lisa Grant Stewart, Assistant principal Wilbur Smith, Parent coordinator Debra Simms, and SSA supervisor Moore-Jones, and the teacher Meloday Davis. The email was not sent from the infant's assigned computer, but a computer assigned to another student Dexter Kingston. The school personnel did not notify the plaintiff infant's mother about the incident and interviewed him without the presence of his guardian. Nevertheless and without a good faith basis, and without probable cause, or a confession, or a thorough investigation the school personnel contacted the local police precinct. Officers from the 103rd precinct responded including Police Officer Callahan ID # 19438 and Sargeant Strom Shield # 816, who interrogated the plaintiff infant without his guardian being present and investigated the various allegations and interviewed the persons involved. They falsely arrested him without probable cause, Arrest #: Q 13608450-L, handcuffed him behind his back, and then in a "perp walk" embarrassed and humiliated the plaintiff infant by parading him in handcuffs in front of his peers and teachers, and transported plaintiff infant to the 103rd precinct where they confined him for about three hours, handcuffed to a bar. That the causes of action continued as the infant plaintiff was thereafter compelled to enter into an agreement to cooperate with Adjustment

Services with the New York City Department of Probation through 4/10/13. Plaintiff infant was unjustifiably arrested by employees of “NYPD” police officer Callahan, and Sargeant Strom.

28. That said arrest was without cause or justification including slander and defamation.

29. That as a result of the false arrest plaintiff was falsely imprisoned.

30. That the occurrence was through no fault, negligence, assumption of risk, lack of care or culpable conduct on the part of the plaintiff infant.

31. That said occurrence was due solely and wholly to the negligence, carelessness and recklessness of defendant “NYPD”, by its agents, servants and/or employees in the supervision, and control of its employees.

32. That said occurrence was due solely and wholly to the negligence, carelessness and recklessness of defendant “NYPD”, by its agents, servants and/or employees in the negligent hiring its employees.

33. That said occurrence was due solely and wholly to the negligence, carelessness and recklessness of defendant “NYPD”, by its agents, servants and/or employees in the negligent training of its employees.

34. As a result of the negligence of defendant “NYPD”, and without any want of care on the part of the plaintiff infant herein, plaintiff infant was caused to experience physical pain, mental anguish, extreme mental and emotional distress.

35. The foregoing was caused solely and wholly through and by reason of the negligence, carelessness, recklessness, and wanton, willful and malicious acts and omissions of defendants and each of them and the agents, servant, and/or employees of defendant “NYPD”, in the purported performance of their duties and in their conduct in this matter, all without any negligence, provocation, fault, crime, misconduct, unlawful activity, offense, violation of law, assumption of risk, lack of care, inattention, inadvertence, poor judgment, want of diligence, or other culpable conduct on plaintiff infant’s part contributing thereto.

36. As a result of the forgoing and solely as a result of the negligence of the defendant “NYPD”, herein, plaintiff infant seeks damages for physical pain and mental anguish.

37. As a result of the forgoing and solely as a result of the negligence of the defendant

“NYPD”, herein, the plaintiff seeks punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST
POLICE OFFICER CALLAHAN Badge No.: 19438

38. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in Paragraphs “1” through “37” of this Complaint, inclusive, with the same force and effect as though fully set forth at length herein.

39. At all times hereinafter mentioned, defendant POLICE OFFICER CALLAHAN (herein after referred to as “CALLAHAN”), was an employee of defendant “CITY”.

40. That on or about 8th day of April, 2013, plaintiff infant caused a Notice of Claim and Intention to Sue to be served upon defendant “CALLAHAN” and that said Notice was served at least (60) days prior to the commencement of this action.

41. At all times hereinafter mentioned, defendant “CALLAHAN” party sued intended to be the police officer of the 103rd Precinct, was employee of defendant “CITY”.

42. At all times hereinafter mentioned, defendant “CALLAHAN”, as aforesaid was employed in the capacity of a police officer at the 103rd Precinct by defendant “CITY”.

43. On or about the 12th day of February, 2013, plaintiff infant was falsely accused of sending an email message containing alleged threatening and harassing comments regarding teacher Meloday Davis. The incident was investigated by school personnel including principal Lisa Grant Stewart, Assistant principal Wilbur Smith, Parent coordinator Debra Simms, and SSA supervisor Moore-Jones, and the teacher Meloday Davis. The email was not sent from the infant’s assigned computer, but a computer assigned to another student Dexter Kingston. The school personnel did not notify the plaintiff infant’s mother about the incident and interviewed him without the presence of his guardian. Nevertheless and without a good faith basis, and without probable cause, or a confession, or a thorough investigation the school personnel contacted the local police precinct. Officers from the 103rd precinct responded including Police Officer Callahan ID # 19438 and Sargeant Strom Shield # 816, who interrogated the plaintiff infant without his guardian being present and investigated the various allegations and interviewed the persons involved. They falsely arrested him without probable cause, Arrest #: Q 13608450-L, handcuffed him behind his back, and

then in a “perp walk” embarrassed and humiliated the plaintiff infant by parading him in handcuffs in front of his peers and teachers, and transported plaintiff infant to the 103rd precinct where they confined him for about three hours, handcuffed to a bar. That the causes of action continued as the infant plaintiff was thereafter compelled to enter into an agreement to cooperate with Adjustment Services with the New York City Department of Probation through 4/10/13. Plaintiff infant was unjustifiably arrested by police officer “CALLAHAN”, Badge # 19438.

44. That said arrest was without cause or justification including slander and defamation.

45. That as a result of the false arrest plaintiff was falsely imprisoned.

46. That the occurrence was through no fault, negligence, assumption of risk, lack of care or culpable conduct on the part of plaintiff “CALLAHAN”.

47. That said occurrence took place primarily by the wanton, willful and malicious acts of defendant “CALLAHAN”.

48. As a result of the negligence of defendant, and without any want of care on the part of plaintiff infant herein, the plaintiff infant was caused to experience extreme and emotional distress and causing him to suffer severe physical pain and mental anguish.

49. The foregoing was caused solely and wholly through and by reason of the negligence, carelessness, recklessness, and wanton, willful and malicious acts and omissions of defendant police officer “CALLAHAN”, in the purported performance of his duties and in his conduct in this matter, all without any negligence, provocation, fault, crime, misconduct, unlawful activity, offense, violation of law, assumption of risk, lack of care, inattention, inadvertence, poor judgment, want of diligence, or other culpable conduct on plaintiff infant’s part contributing thereto.

50. As a result of the forgoing and solely as a result of the negligence of the defendants, herein, plaintiff infant seeks damages for physical pain and mental anguish.

51. As a result of the forgoing and solely as a result of the negligence of the defendants, herein, plaintiff infant seeks punitive damages.

52. That the amount of damages sought by the plaintiff infant exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

53. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in Paragraphs “1” through “52” of this Complaint, inclusive, with the same force and effect as though fully set forth at length herein.

54. That as a result of the foregoing defendants violated plaintiff infant’s Civil Rights pursuant to 28 U.S.C. §1983 and caused him great pain, anguish and mental distress.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST
SARGEANT STROM Shield No.: 816**

55. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in Paragraphs “1” through “51” of this Complaint, inclusive, with the same force and effect as though fully set forth at length herein.

56. At all times hereinafter mentioned, defendant SARGEANT STROM (herein after referred to as “STROM”), was an employee of defendant “CITY”.

57. That on or about 8th day of April, 2013, plaintiff infant caused a Notice of Claim and Intention to Sue to be served upon defendant “STROM” and that said Notice was served at least (60) days prior to the commencement of this action.

58. At all times hereinafter mentioned, defendant “STROM” party sued intended to be the police officer of the 103rd Precinct, was employee of defendant “CITY”.

59. At all times hereinafter mentioned, defendant “STROM”, as aforesaid was employed in the capacity of a Police Sargeant at the 103rd Precinct by defendant “CITY”.

60. On or about the 12th day of February, 2013, plaintiff infant was falsely accused of sending an email message containing alleged threatening and harassing comments regarding teacher Meloday Davis. The incident was investigated by school personnel including principal Lisa Grant Stewart, Assistant principal Wilbur Smith, Parent coordinator Debra Simms, and SSA supervisor Moore-Jones, and the teacher Meloday Davis. The email was not sent from the infant’s assigned computer, but a computer assigned to another student Dexter Kingston. The school personnel did not notify the plaintiff infant’s mother about the incident and interviewed him without the presence of his guardian. Nevertheless and without a good faith basis, and without probable cause, or a

confession, or a thorough investigation the school personnel contacted the local police precinct. Officers from the 103rd precinct responded including Police Officer Callahan ID # 19438 and Sargeant Strom Shield # 816, who interrogated the plaintiff infant without his guardian being present and investigated the various allegations and interviewed the persons involved. They falsely arrested him without probable cause, Arrest #: Q 13608450-L, handcuffed him behind his back, and then in a “perp walk” embarrassed and humiliated the plaintiff infant by parading him in handcuffs in front of his peers and teachers, and transported plaintiff infant to the 103rd precinct where they confined him for about three hours, handcuffed to a bar. That the causes of action continued as the infant plaintiff was thereafter compelled to enter into an agreement to cooperate with Adjustment Services with the New York City Department of Probation through 4/10/13. Plaintiff infant was unjustifiably arrested by Police Sargeant “STROM”, Shield # 816.

61. That said arrest was without cause or justification including slander and defamation.

62. That as a result of the false arrest plaintiff was falsely imprisoned.

63. That the occurrence was through no fault, negligence, assumption of risk, lack of care or culpable conduct on the part of plaintiff “STROM”.

64. That said occurrence took place primarily by the wanton, willful and malicious acts of defendant “STROM”.

65. As a result of the negligence of defendant, and without any want of care on the part of plaintiff infant herein, the plaintiff infant was caused to experience extreme and emotional distress and causing him to suffer severe physical pain and mental anguish.

66. The foregoing was caused solely and wholly through and by reason of the negligence, carelessness, recklessness, and wanton, willful and malicious acts and omissions of defendant police officer “STROM”, in the purported performance of his duties and in his conduct in this matter, all without any negligence, provocation, fault, crime, misconduct, unlawful activity, offense, violation of law, assumption of risk, lack of care, inattention, inadvertence, poor judgment, want of diligence, or other culpable conduct on plaintiff infant’s part contributing thereto.

67. As a result of the forgoing and solely as a result of the negligence of the defendants, herein, plaintiff infant seeks damages for physical pain and mental anguish.

68. As a result of the forgoing and solely as a result of the negligence of the defendants, herein, plaintiff infant seeks punitive damages.

69. That the amount of damages sought by the plaintiff infant exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

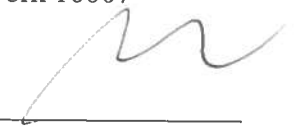
70. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in Paragraphs "1" through "69" of this Complaint, inclusive, with the same force and effect as though fully set forth at length herein.

71. That as a result of the foregoing defendants violated plaintiff infant's Civil Rights pursuant to 28 U.S.C. §1983 and caused him great pain, anguish and mental distress.

WHEREFORE, plaintiff demands monetary judgment against the defendants in an amount to be determined upon the trial of this action, together with the costs and disbursements of the within action.

Date: New York, New York
February 18, 2014

SALZMAN & WINER, LLP.
Attorneys for Plaintiff
305 Broadway, Suite 1204
New York, New York 10007
(212) 233-6550

By: 

Mitchell G. Shapiro, Esq.

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am a member of the firm of SALZMAN & WINER, LLP., the attorneys of record for the plaintiffs in the within action; I have read the foregoing

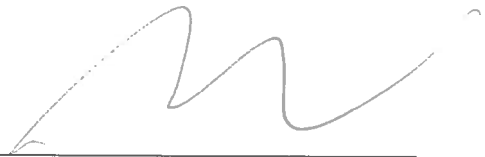
SUMMONS and VERIFIED COMPLAINT

and know the contents thereof; the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiff is that deponent maintains offices outside the County in which plaintiff resides.

The grounds of my belief as to all matters not stated upon my own knowledge, are as follows: entire file maintained in your deponent's offices; investigations, etc.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
February 18, 2014



Mitchell G. Shapiro, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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SUMMONS and VERIFIED COMPLAINT

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SALZMAN & WINER, LLP.

Attorneys for Plaintiff

305 Broadway, Suite 1204
New York, New York 10007
Tel: (212) 233-6550